IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-521
CP (CAA) No.-20/230/232/ND/2022

IN THE MATTER OF:
Jet Hotels Pvt. Ltd. And Jetair Business Solutions Pvt. Ltd. **....Applicant**

SECTION
U/s 230-232 **Order delivered on 19.04.2023**

CORAM:
SHRI P.S.N PRASAD,
HON'BLE MEMBER (JUDICIAL)

DR. BINOD KUMAR SINHA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant : Mr. Rajeev K. Goel, Adv.
For the Respondent :
For the RD : Ms. Shankari Mishra, Adv.
For the OL : Ms. Hemlata Rawat, Adv.

ORDER

Heard the submissions made by Ld. Counsel for the Petitioner. The affidavits filed in compliance to Section 230-232 are taken on record. Ld. Counsel has disclosed that some investigation proceedings are pending/under progress by SFIO against the Transferee Company which will continue to exist even after the proposal is accepted by the Tribunal. Therefore, it will not hamper the on-going present proposal for amalgamation of the Petitioner companies. Proxy counsel for the RD is present and reiterated the observations made in their Report. Ld. Counsel for the OL is present and submitted that they have no objections to proceed with the proposal of the Petitioners. Ld. Counsel for the Petitioner has submitted that Income Tax reports are already on record. In view of the above, the order in this matter is **reserved.**

S/d- **S/d-**
(DR. BINOD KUMAR SINHA) **(P.S.N PRASAD)**
MEMBER (T) **MEMBER (J)**

Amit Tiwari
19.04.2023